

THE FISHER FAMILY TRUST vs. TIMOTHY LEFEVER
Case No. CU25-03733

Demurrer and Motion to Strike re: First Amended Complaint

TENTATIVE RULING

On the Court's own motion, the hearing on Defendant LEFEVER's demurrer, motion to strike as to the first amended complaint, and the case management conference is continued to June 16, 2026 at 9:00 a.m.

SYDNEY NACHOR; ET AL. vs. JEFFCO PAINTING AND COATING, INC.; ET AL.
Case No. CU25-04265

JEFFCO's Demurrer

TENTATIVE RULING

Defendant JEFFCO PAINTING & COATING, INC.'s ("JEFFCO") demurrers to Plaintiffs SYDNEY NACHOR and TRACY NACHOR's first amended complaint in case CU25-04265 and Plaintiff RAYMUNDO CAMARENA's first amended complaint in case CU25-05331 previously came on for hearing on March 24, 2026. At that time the court continued the hearing to its present date to afford Plaintiffs an opportunity to submit evidence on the issue of whether the amended complaints are sham pleadings. JEFFCO was also afforded the opportunity to file a response to any such submission from Plaintiffs. The court has since received a supplemental declaration from Plaintiffs and a response to that declaration from JEFFCO.

Sham Pleading Doctrine. Under the sham pleading doctrine, plaintiffs are forbidden to amend complaints to omit harmful allegations from previous complaints or add allegations inconsistent with those of earlier complaints, unless a satisfactory explanation for the changes is made. (*Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408, 425 (*Deveny*).) If a party attempts to avoid the defects of an earlier complaint by filing an amended complaint with such unexplained omissions or additions the court may take judicial notice of the earlier pleading and disregard inconsistent allegations. (*Colapinto v. County of Riverside* (1991) 230 Cal.App.3d 147, 151.)

The CU25-04265 1AC and CU25-05331 1AC alike reverse allegations from their original versions that indicate that the incident occurred while they and RAYMUNDO DANIEL CAMARENA was in the course and scope of employment with JEFFCO, which raised a question of worker's compensation exclusivity. Plaintiffs have supplied admissible evidence explaining the change in allegations. The court finds the evidence that Plaintiffs' original "course and scope of employment" language was erroneously used as part of templated pleading persuasive. The court finds that the sham pleading doctrine does not invalidate either of the complaints.